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Big tests ahead for new Legislature

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Now comes the hard part.

That was the main takeaway from Monday's largely ceremonial flurry of activity in the state Capitol.

Joined by their families, newly elected lawmakers were sworn into office after opening speeches that at times ventured into the metaphysical, with Assembly Speaker Anthony Rendon at one point comparing the challenge of political change to that of postmodern architecture: "Although you can tear down what came before you, you still need a structure in which to live."

Lawmakers also convened Gov. Gavin Newsom's special session on oil company profits, and then just as quickly adjourned it: In the Assembly, organization of the special session lasted three minutes.

Newsom, meanwhile, unveiled the text of his proposal to enact a price gouging penalty on oil companies about two months after first floating the idea — but many blanks, literally, still have to be filled in.

According to the Newsom administration, the bill would permit the state to fine oil refiners with "excessive profit margins" and funnel the penalty money back to Californians. But some of the bill's most contentious aspects — including the size of the penalty and the definition of "excessive" margins — remain unclear and will have to be worked out in negotiations with the Legislature.

Some lawmakers were hesitant to embrace the half-formed proposal, CalMatters' Alexei Koseff and Sameea Kamal report: "It would certainly be problematic if in the short term it leads to higher prices for consumers," said Democratic Assemblymember Jacqui Irwin of Thousand Oaks.

* Newsom told reporters: "I hope it never goes into effect because these (companies) will change the way they've been doing business. We want them to make extraordinary profits. I'm not opposed to profits. They just can't take advantage of you."

* Kevin Slagle, a spokesperson for the Western States Petroleum Association, told the Los Angeles Times: "To ... see no details on thresholds or what this penalty is and looks like ... it makes us wonder if this is a real public policy discussion or more of the politics we've seen from this governor."

Public policy discussions aren't likely to start until Jan. 4 at the earliest, when state lawmakers will reconvene both the regular and special legislative sessions. Meanwhile, pressure will likely keep building on all sides: Greenpeace USA activists, for example, unfurled banners in the state Capitol demanding lawmakers "make Big Oil pay."

Other legislative news you should know:

* The speakership deal is official: The Assembly approved a resolution formalizing a leadership transition plan greenlighted by Democratic members last month: Rendon will remain speaker through June 30, 2023, at which point Assemblymember Robert Rivas of Hollister will take over.

* The Senate gets a new minority leader: Republican Sen. Brian Jones of Santee will replace Scott Wilk of Santa Clarita as leader of the Senate Republican Caucus.

* Lawmakers introduced a torrent of new bills — though, again, the hard part will come next year, when they'll face

votes and debates. Key proposals include:

* The latest attempt to allow legislative workers to unionize. "We ask our staff to write legislation and staff bills that expand collective bargaining rights for other workers in California, yet we prohibit our own employees from that same right," Democratic Assemblymember Tina McKinnor of Inglewood, the bill's author, said in a statement.

* The latest attempt to impose new excise taxes on guns and ammunition, authored by Democratic Assemblymember Jesse Gabriel of Woodland Hills.

* A bill to specify a timeline for schools to implement LGBTQ+ cultural competency teacher training under development by the state education department, authored by new Democratic Assemblymember Rick Chavez Zbur of West Hollywood.

* A bill to push California closer to its goal of offering debt-free college by allowing income-eligible UC and CSU students to receive expanded financial aid awards to help cover such non-tuition costs as housing, books, food and transportation — authored by Democratic Assemblymembers Kevin McCarty of Sacramento and Sabrina Cervantes of Riverside.

* And Assembly Republicans unveiled a package of bills called the "California Promise," which call for suspending the state gas tax, offering property tax bonuses to local governments that approve more housing, banning homeless encampments near schools, increasing penalties for fentanyl dealers, giving working families a tax credit and expanding the renters' tax credit, promoting transparency in school curriculum, and expediting environmental review for water storage projects, among other things.

Make your voice heard: If you've always wondered how exactly California state government works, now's your chance to ask: CalMatters is putting together an explainer and is seeking questions to answer and confusing processes to clarify. Submit your questions here.

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